

Saurabh v. State of U.P.

Allahabad High Court · Division Bench · 22 February 2019 · WRIT - C No. - 6149 of 2019 · **Writ disposed; objection to provisional assessment to be considered; coercive recovery stayed one month.**

HEADNOTE

A recovery citation for alleged electricity-theft dues rested on a provisional assessment made without calling for objection or fixing a hearing under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005, and that provisional assessment had been treated as final. The High Court disposed of the writ directing that if the consumer files an objection, the Executive Engineer shall consider it and pass an appropriate order under the Electricity Act and the Supply Code within one month; coercive action on the citation was stayed for that period. A final assessment order has to be passed separately.

FACTUAL SUMMARY

Saurabh challenged a recovery citation dated 25 January 2019 issued for Rs. 9,54,970 plus other charges, sought as arrears of land revenue on account of electricity dues coupled with an allegation of theft. The respondents included the State of Uttar Pradesh and the electricity department; the officer concerned was the Executive Engineer, Pashimanchal Vidyut Vitran Nigam Ltd., District Bulandshahr. The petitioner's complaint was that a provisional assessment had been drawn without inviting his objection or fixing a date of hearing, and had then been treated as the final assessment.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment — objection and hearing; provisional not treated as final

HOLDING

Where a recovery citation for alleged theft dues rests on a provisional assessment made without calling for the consumer's objection or fixing a date of hearing under Clause 6.8(b), and that provisional assessment has been treated as the final assessment, the Court will not decide the dues on merits. If the consumer files an objection to the provisional assessment, the Executive Engineer shall consider it and pass an appropriate order following the Electricity Act and the Supply Code within one month of production of a certified copy; a final assessment order has to be passed separately. Coercive action on the citation is stayed for that one-month period. ¶ 1

PRINCIPLE TAGS

provisional-assessment-hearing-6.8b

Clause 6.8(b) requires that objection be called and a hearing date fixed on a provisional assessment; the provisional assessment cannot itself be treated as the final assessment, which must be a separate order. The Court remitted consideration of any objection rather than quashing the citation on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LIABILITY FOR ALLEGED THEFT AND QUANTUM OF RS. 9,54,970

The Court did not adjudicate the theft allegation or the amount; it directed consideration of an objection to the provisional assessment in accordance with law. ¶ 1